

March 20, 2026, Civil Law & Motion Tentative Rulings

1. CL0001259 Thomas M. Deal v. Fred Gerkenmeyer, et al.

Plaintiff Thomas M. Deal's motion for reconsideration is denied. Any perceived request to approve a Third Amended Complaint is denied as Plaintiff has failed to file a noticed motion requesting such.

At bar, it is unclear what Plaintiff is requesting the court reconsider. It appears Plaintiff is under the incorrect impression the sustaining of Defendant Regional Housing ("RHA") Authority's demurrer without leave to amend necessitated the filing of a third amended complaint just to Defendant Gerkenmeyer. Such is not the case. RHA was dismissed from the case on January 20, 2025, but Defendant Gerkenmeyer remains as a party.

Self-represented litigants are to be treated like any other party and receive no greater consideration than litigants represented by attorneys. *ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 208. Accordingly, pro se parties are held to the same standards and must comply with the same rules as attorneys. *Nuno v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 811 ("[J]udges are not required to act as counsel for self-represented part[ies], instead, self-represented litigants "must expect and receive the same treatment as if represented by an attorney – no different, no better, no worse.", quoting *Taylor v. Bell* (1971) 21 Cal.App.3d 1002, 1009).

Therefore, Plaintiff is admonished to not file any amended complaint prior to a motion for leave and absent leave of the court. Additionally, contrary to Plaintiff's belief in his papers, the court notes Plaintiff remains on the Vexatious Litigant List, which has been updated as of March 1, 2026.

2. CL0003838 In the Matter of Brandon Murray

The petition for release of mechanic's lien is denied without prejudice.

Introduction

The case concerns the property located at 16343 Rattlesnake Rd., Grass Valley, CA 95945 ("Property"). Petitioners Brandon Murray and Krystal Murray are the owners of the Property. On November 3, 2025, Respondent Andrew Ehlers recorded a mechanic's lien against the property in the amount of \$95,000.00 for labor, services, equipment, or materials furnished by Respondent for work of improvement.

Legal Standard

After a mechanic's lien has been recorded, "[t]he owner of property or the owner of any interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to enforce the lien within the time provided in Section 8460." Civ. Code § 8480(a). A claimant must commence an action to enforce a lien within 90 days of recording the lien. Civ. Code, § 8460(a). Civil Code § 8460

further provides that “[i]f the claimant does not commence an action to enforce the lien within that time, the claim of lien expires and is unenforceable.” Civ. Code, § 8460(a). Civil Code § 8460 also provides that the 90-day time limit to commence an action to enforce a lien does not apply if there was an agreement to extend credit and a notice of that fact was recorded within 90 days after recordation of the claim of lien or more than 90 days after recordation of the claim of lien but before a purchaser or encumbrancer for value and in good faith acquires rights in the property. Civ. Code, § 8460(b).

Civil Code § 8484 requires that the petition for release order be verified by the petitioner and allege the following:

- (a) The date of recordation of the claim of lien. A certified copy of the claim of lien shall be attached to the petition.
- (b) The county in which the claim of lien is recorded.
- (c) The book and page or series number of the place in the official records where the claim of lien is recorded.
- (d) The legal description of the property subject to the claim of lien.
- (e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.
- (f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.
- (g) Whether an action to enforce the lien is pending.
- (h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien.

A property owner may not petition for a release order until he or she gives the claimant notice demanding that the claimant execute and record a release of lien claim at least ten days before filing the petition. Civ. Code § 8482. The manner of giving notice must comply with the requirements of Civil Code sections 8100, et. seq. *Id.*

“The petitioner shall serve a copy of the petition and a notice of hearing on the claimant at least 15 days before the hearing.” Civ. Code, § 8486(b). “Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108.” *Id.*

Civil Code section 8108 provides that notice can be given to Respondent at the address shown on Respondent’s claim of lien. Civ. Code § 8108(d). The petitioner bears the burden of proving compliance with the service and notice requirements. Civ. Code § 8488(a).

Analysis

Statutory Requirements

At bar, the petition does not fully comply with the statutory requirements. The Petition is verified, alleges the date of recordation of the Claim of Mechanic's Lien, the county in which it was recorded (Nevada County), and attaches and incorporates by reference a certified copy of the Claim of Mechanic's Lien. Pet., ¶ 3; Pet. p. 4 (verification); Exh. A. The Petition states the lien was recorded in the official records of the County Recorder as Document No. 20250017281. Pet., ¶ 3. The Petition alleges the legal description of the Subject Property. Pet., ¶ 1.

The Petition alleges that no extension of credit has been granted, that no action to foreclose the Claim of Mechanic's Lien was filed, that the 90-day time period to enforce the Claim of Mechanic's Lien has expired. Pet., ¶ 4. The Petition also alleges Petitioner has not filed for bankruptcy and that no other restraint exists preventing Respondent from filing an action to enforce the lien. Pet., ¶ 8. The Petition alleges that on February 12, 2026, which is at least ten days prior to the filing of the Petition, Petitioner sent Respondent, by certified mail a written demand to remove the Claim of Mechanic's Lien. Pet., ¶ 6, Exh. B; POS on Petitioner's Demand for Release, p. 11. Service of the written demand by "registered or certified mail, express mail, or overnight delivery by an express service carrier" is proper. Civ. Code §§ 8100, 8106(b), 8110.

In sum, Petitioner has met the substantive requirements for relief.

Service Requirements

"The petitioner shall serve a copy of the petition and a notice of hearing on the claimant at least 15 days before the hearing." Civ. Code, § 8486(b). "Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108." *Id.* If service is made by mail, notice of hearing must be given at least 15 days before the hearing, plus 5 calendar days for service by mail. Code of Civ. Proc. § 1013(a). The petitioner bears the burden of proving compliance with the service and notice requirements. Civ. Code § 8488(a).

At bar, Petitioner's proof of service filed February 25, 2026 indicates service was made by electronic service on February 23, 2026. There is no indication service was made "in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested." Civ. Code § 8486(b); Code Civ. Proc. §§ 415.10, 1010.6(a)(2). Thus, the Court finds Petitioner fails to sustain his burden of proof with respect to service and notice of hearing.

As such, the Court denies the petition without prejudice to renewal given the defects discussed.

3. CU0001540 Bradley Dorigo, et al v. County of Nevada

Defendants' California Department of Transportation ("CalTrans") and California Transportation Agency ("CalSTA") unopposed demurrer to plaintiff's second amended complaint is sustained without leave to amend.

Legal Standard

A demurrer challenges defects appearing on the face of the pleading or from matters